

Alpaca Customer Agreement

In consideration of Alpaca Securities LLC (“Alpaca”) and its agents and assigns (collectively “You” and/or “Your”) opening one or more accounts (“My Account(s)” or the “Account(s)”) on my behalf, I represent and agree with respect to all Accounts, to the terms set forth below (the “Agreement”). When used in this Agreement, the words “I”, “Me”, “My”, “Mine”, “We” and/or “Us” mean the owner(s) of the Account. When used in the Agreement, the word “Custodian” means the person who is opening the Account for the benefit of the minor. When used in the Agreement, the word “federal” means the United States of America. I also agree to the terms of the Alpaca Terms and Conditions, Alpaca Use and Risk Disclosures, Alpaca PFOF Disclosure, Alpaca Privacy Notice, Alpaca Extended Hours Trading Risk Disclosure, and Alpaca Business Continuity Plan Summary, and to the extent that I have indicated that my Account will be opened pursuant to the Uniform Gifts to Minors (“UGMA”) or Uniform Transfers to Minors (“UTMA”) state statutes, Alpaca UGMA/UTMA Disclosure Statement, which are incorporated by reference and constitute part of this Agreement. If margin credit is granted, the Alpaca Margin Disclosure Statement is also incorporated by reference and constitutes part of this Agreement. I also agree to the terms of the NASDAQ OMX Global Subscriber Agreement and AGREEMENT FOR MARKET DATA DISPLAY SERVICES if I am provided access to such data, which are also incorporated by reference and constitute part of this Agreement.

I understand that the Alpaca trading platform (the “Platform”) is operated by each of Alpaca Securities LLC and Alpaca Crypto LLC (“Alpaca Crypto”) (each, an “Alpaca Entity”). The Platform is accessed via website (the “Website”) and mobile application (the “App”). In order to access the services offered by Alpaca Crypto I understand that I must enter into a separate agreement with Alpaca Crypto (“Alpaca Crypto Customer Agreement”) and open an account with Alpaca Crypto (“Alpaca Crypto Account”). For the avoidance of doubt, I understand that this Agreement solely governs My relationship with You as it relates to the services provided under this Agreement.

In addition, I may, in the future, receive from You supplemental disclosures, terms, and agreements that pertain to certain account types, features, or services. References to this Agreement include such supplemental disclosures, terms, and agreements. I agree to read this Agreement and all incorporated disclosures, terms, and agreements carefully and retain copies for My records.

I UNDERSTAND THAT THE TERMS AND CONDITIONS OF THIS AGREEMENT GOVERN ALL ASPECTS OF MY RELATIONSHIP WITH YOU REGARDING MY ACCOUNTS. I WILL CAREFULLY READ, UNDERSTAND AND ACCEPT THE TERMS AND CONDITIONS OF THIS AGREEMENT BEFORE I SIGN THE APPLICATION OR OTHER SIMILARLY WORDED SIGNATURE AREAS. IF I HAVE ANY QUESTIONS ABOUT ANY OF THE PROVISIONS IN THIS AGREEMENT, I WILL EMAIL compliance@alpaca.markets OR CALL ALPACA AT +1 (941) 231-4093. I UNDERSTAND THAT ELECTRONICALLY SIGNING THE APPLICATION, IT IS THE LEGAL EQUIVALENT OF MY MANUALLY SIGNING THIS AGREEMENT AND I WILL BE LEGALLY BOUND BY ITS TERMS AND CONDITIONS. BY ENTERING

INTO THIS AGREEMENT, I ACKNOWLEDGE RECEIPT OF THE ALPACA PRIVACY STATEMENT. I UNDERSTAND THAT THIS AGREEMENT MAY BE AMENDED FROM TIME TO TIME BY ALPACA, WITH REVISED TERMS POSTED ON THE ALPACA WEBSITE. I AGREE TO CHECK FOR UPDATES TO THIS AGREEMENT. I UNDERSTAND THAT BY CONTINUING TO MAINTAIN MY SECURITIES BROKERAGE ACCOUNT WITHOUT OBJECTING TO ANY REVISED TERMS OF THIS AGREEMENT, I AM ACCEPTING THE TERMS OF THE REVISED AGREEMENT AND I WILL BE LEGALLY BOUND BY ITS TERMS AND CONDITIONS. IF I REQUEST OTHER SERVICES PROVIDED BY ALPACA THAT REQUIRE ME TO AGREE TO SPECIFIC TERMS AND CONDITIONS ELECTRONICALLY (THROUGH CLICKS OR OTHER ACTIONS) OR OTHERWISE, SUCH TERMS AND CONDITIONS WILL BE DEEMED AN AMENDMENT AND WILL BE INCORPORATED INTO AND MADE PART OF THIS AGREEMENT. I ALSO UNDERSTAND THAT BY ELECTRONICALLY SIGNING THE APPLICATION, I HAVE ACKNOWLEDGED THAT THIS AGREEMENT CONTAINS A PREDISPUTE ARBITRATION CLAUSE IN SECTION 46 HEREIN.

1. Capacity and Status.

- a) If an individual, I am of legal age under the laws of the jurisdiction where I reside and authorized to enter into this Agreement. If an entity, I am duly formed, validly existing and in good standing in My jurisdiction of organization, have full power and authority to enter and perform this Agreement, and the persons signing the Agreement are fully authorized to act on My behalf. No person, except Myself (or any person named in a separate agreement or joint account), has any interest in the Account opened pursuant to this Agreement. I acknowledge that unless You receive a written objection from Me, You may provide My name, address, and securities positions to requesting companies in which I hold securities. Except as otherwise disclosed to You in writing, neither I nor any member of My immediate family is an employee of any exchange, any corporation of which any exchange owns a majority of the capital stock, a member of any exchange or self-regulatory organization, a member of any firm or member corporation registered on any exchange, a bank, trust company, insurance company or any corporation, firm or individual engaged in the business of dealing either as a broker-dealer or as principal in securities. I understand and agree that I am obligated to promptly notify You in writing if I or a member of My immediate family becomes registered or employed in any of the above-described capacities. I further agree to promptly notify You in writing if I am now or if I become: (i) registered or qualified with the Financial Industry Regulatory Authority, Inc. ("FINRA"), the SEC, the Commodities Futures Trading Commission, any state securities agency, any securities exchange or association, or any commodities or futures contract market or association; (ii) an "investment adviser" as that term is defined in Section 201(11) of the Investment Advisers Act of 1940 (whether or not registered or qualified under that act); (iii) employed by a bank or other organization exempt from registration under federal and state securities laws to perform functions that would require Me to be so registered or qualified if I were to perform such functions for an organization not so exempt; or (iv) an officer, director or 10% stockholder of any publicly traded company.

b) Non-Domestic Customer

Alpaca makes its services available to persons and businesses in countries where it is not otherwise prohibited. Alpaca does not solicit any non-domestic persons or businesses. If I am a non-domestic person or business, I must explicitly acknowledge and confirm that I have not been solicited by Alpaca prior to becoming a customer of Alpaca (a “Non-Domestic Customer”). To the extent that I am a Non-Domestic Customer, I understand and acknowledge that You also may conduct more extensive due diligence and require additional identity documentation for Non-Domestic Customers. All Non-Domestic Customers must complete and provide to Alpaca an appropriate Form W-8 and its certification. In order for a Non-Domestic Customer to keep an account open, a Non-Domestic Customer must keep an appropriate Form W-8 current and no less than every 36 months, re-certify that the information on the appropriate Form W-8 is correct and accurate. I acknowledge and understand that any failure to satisfy the aforementioned obligations may, at Alpaca’s sole discretion, result in the restriction and/or termination of My Account.

2. **My Representation and Warranties.**

I represent and warrant that:

- a) The Account is not maintained by a current or former Politically Exposed Person or Public Official (includes U.S. and Foreign Individuals).
- b) This brokerage account is not maintained by a Foreign Financial Institution as defined by Title 30 of the Code of Financial Institution as defined by Title 30 of the Code of Federal Regulations.
- c) This brokerage account is not a Foreign Bank organized under foreign law and located outside of the United States as defined by Title 31 of the Code of Federal Regulations.
- d) I have carefully reviewed, understand and agree to the terms and provisions of the following; Alpaca Terms and Conditions, NASDAQ OMX Global Subscriber Agreement (if applicable), AGREEMENT FOR MARKET DATA DISPLAY SERVICES (if applicable), Alpaca Use and Risk Disclosures, Alpaca PFOF Disclosure, Alpaca Privacy Notice, Alpaca Extended Hours Trading Risk Disclosure, Alpaca Business Continuity Plan Summary, Alpaca UGMA/UTMA Disclosure Statement (if applicable) and Alpaca Margin Disclosure Statement (if applicable).
- e) All information provided in this application is accurate. You can rely on and are authorized to verify this information, and I will promptly notify You of any changes.
- f) I consent to receive all future brokerage account information electronically.
- g) By signing below electronically, it is equivalent to My written signature, and I understand that I am entering into legal agreements.
- h) I acknowledge and agree that Alpaca did not directly solicit me to open a brokerage account.
- i) The information I have provided in this application is accurate.

- j) I agree to notify you promptly regarding any change in the information provided on this application.

3. Rule 14b-1(c).

I acknowledge that Rule 14b-1(c) of the Securities Exchange Act, unless I object, requires You to disclose to an issuer, upon its request, the names, addresses, and securities positions of Your customers who are beneficial owners of the issuer's securities held by You in nominee name. The issuer would be permitted to use My name and other related information for corporation communication only. If I object, I will send an email to bd-ops@alpaca.markets with "Rule 14b-1(c) objection" in the subject.

4. Authorization.

I understand that My Account is self-directed. Accordingly, I appoint You as My agent for the purpose of carrying out My directions to You in accordance with the terms and conditions of this Agreement and any attendant risks with respect to the purchase or sale of securities. You are authorized to open or close My Accounts, place and withdraw orders and take such other steps as are reasonable to carry out My directions. All transactions will be effected only on My order or the order of My authorized delegate, except as described in Section 10. I understand Alpaca provides trading and brokerage services through the Website, the App, and the Application Programming Interface (the "API"). I agree to receive and transmit financial information through such electronic means. My use or My grant of access to My Account to any third party to access information or place transactions in My Account is solely at My risk.

I further authorize You and/or any entity directed by Alpaca Securities LLC to obtain a credit and background investigation report about me. I understand that a "consumer credit report" includes any information regarding my credit worthiness, credit standing and credit capacity. I further understand and agree that a credit report and/or a background investigation report may be obtained at any time, and any number of times, as Alpaca Securities LLC, in its sole discretion, determines is necessary before, during or after my involvement with Alpaca Securities LLC.

I hereby authorize all reporting agencies and other persons or entities having information about me to provide such information to Alpaca Securities LLC or other entity that obtains information for Alpaca Securities LLC. I further fully release Alpaca Securities LLC, its employees, officers, directors, agents, successors and assigns, and all other parties involved in this background investigation, including but not limited to investigators, credit agencies and those companies or individuals who provide information to Alpaca Securities LLC concerning me, from any claims or actions for any liability whatsoever related to the process or results of the background investigation. Upon My written request, You will disclose to Me whether it obtained a report, and if so, the name and address of the consumer reporting agency that provided it. I further understand that if I am in the state of California, Minnesota, or Oklahoma, I can receive a free copy of any credit report requested by Alpaca Securities LLC about me at the same time the report is provided to Alpaca Securities LLC (send an email to bd-ops@alpaca.markets requesting a copy of the credit report).

5. Customer Representations and Responsibilities.

a) Self-directed Account.

I understand that My Account is self-directed, I am solely responsible for any and all orders placed in My Account and all orders entered by me or on My behalf are unsolicited and based on My own investment decisions or the investment decision of My duly authorized representative or agent. Accordingly, I agree that neither You nor any of Your employees, agents, principals or representatives:

1. provide investment advice in connection with this Account;
2. recommend any security, transaction or order;
3. solicit orders;
4. act as a market maker in any security;
5. make discretionary trades; and
6. produce or provide research

b) Research Materials.

To the extent research materials or similar information is available through the App or the Website or the web sites of any of its affiliates, I understand that these materials are intended for informational and educational purposes only, and they do not constitute a recommendation to enter into any securities transactions or to engage in any investment strategies.

c) Information Accuracy.

1. I certify that the information contained in this Agreement and any other document that I furnish to You in connection with My Account(s) is complete, true and correct, and acknowledge that knowingly giving false information for the purpose of inducing You to extend credit is a federal crime;
2. I authorize You to contact any individual or firm noted herein or on the documents referred to in subsection (i) of this Section and any other normal sources of debit or credit information;
3. I authorize anyone so contacted to furnish such information to You as You may request; and
4. I agree that this Agreement and any other document I furnish in connection with My Account is Your property, as the case may be.
I shall promptly advise You of any changes to the information in such agreements and documents in writing within ten (10) calendar days. I authorize You to obtain reports and provide information to others concerning My creditworthiness and business conduct. Upon My request, You agree to provide Me a copy of any report so obtained. You may retain this Agreement, the Account application, and all other such documents and their respective records at Your sole discretion, whether or not credit is extended.

6. Custodial Accounts.

For purposes of this Section 6, “You” or “Your” refers to the individual acting as the Custodian for the Minor. An Alpaca customer in good standing may open or maintain a custodial account for a minor (a “Custodial Account”). These accounts are governed by the Uniform Transfers to Minors Act (“UTMA”) provisions (or, where applicable, the Uniform Gifts to Minors Act (“UGMA”)) of the governing state. For purposes of this Agreement, the “Minor” is the individual on whose behalf the Custodial Account is established, and the Minor, not the Custodian, is the client and legal owner of all assets in the Account. The person opening or maintaining the Account is the “Custodian,” who acts on the Minor’s behalf and whose authority and responsibilities are governed by the applicable UTMA or UGMA and other applicable law. Alpaca may decline to open a Custodial Account if the Minor is ineligible under governing law or if Alpaca reasonably believes a contribution would not constitute a valid gift. All funds and assets contributed to the Custodial Account irrevocably become the property of the Minor.

The statutory age of termination varies by state. You are responsible for determining the governing law, the age of termination, and the Minor’s eligibility; Alpaca is not responsible for doing so. Absent your election at account opening, Alpaca will apply the default age of termination for custodial accounts established by irrevocable gift under the UTMA of your state of record. If you wish to select a non-default age permitted by law, or if a specific contribution is subject to a different age of termination, you must notify Alpaca in writing. Alpaca may rely exclusively on your notification and has no obligation to verify statutory ages for any contribution. You acknowledge that electing to defer termination of custodianship beyond the Minor’s attainment of twenty-one (21) years of age will cause the transfer to be a gift of future interest which may have adverse federal and state gift tax consequences. You should consult with an attorney or tax advisor before making such designation. Assets held in a Custodial Account may be considered the Minor’s resources for purposes of eligibility for means-tested government benefits, including Supplemental Security Income (SSI) and Medicaid, and the termination of a custodianship may result in a sudden increase in the Minor’s available resources. You are responsible for understanding how Custodial Account assets may affect such eligibility and for consulting appropriate advisors regarding any potential impact.

By acting as Custodian, You certify that assets in the Custodial Account are for the exclusive benefit of the Minor. Alpaca does not have an obligation to monitor your fiduciary compliance or the use of withdrawn assets. Alpaca is not the custodian of the Custodial Account and owes no fiduciary duties to You or the Minor. If a Custodian is unable to serve, Alpaca may rely on statutory successor provisions and restrict the Custodial Account until authority is established. Alpaca may also administratively update the Custodial Account’s descriptive registration or statutory reference to reflect state law transitions (e.g., from UGMA to UTMA) without altering asset ownership, the age of termination, or the irrevocable nature of the gift.

Standard margin investing is not available for Custodial Accounts, and You may not use assets in the Custodial Account as collateral for a loan from Alpaca or any third party. Alpaca may, in its discretion, extend limited margin functionality to make proceeds from

pending securities sales available for reinvestment prior to final settlement in accordance with applicable law and Alpaca's policies and procedures. Any such extension of credit is limited to facilitating settlement processing and does not constitute margin investing or a loan secured by Custodial Account assets.

If You opt the Custodial Account into a fully paid securities lending program, You acknowledge that You may receive cash payments in lieu of dividends. These payments may not be afforded the same treatment as qualified dividends and are likely to be taxed at a higher rate than the preferential qualified dividend rate. You represent that You have determined such participation is in the Minor's best interest after considering these tax and fiduciary implications.

Upon the Minor reaching the age of termination, You are responsible for requesting the transfer of control. Alpaca reserves the right to restrict Your access and authority at that time, which terminates Alpaca's obligation to accept instructions from You. You agree to provide the Minor's contact information and to indemnify and hold Alpaca harmless from any and all liability, including from any claim by the Minor, arising from following Your instructions or the transfer of control. If You do not transfer control and register the assets in the Minor's name at termination, You authorize Alpaca (but Alpaca shall have no obligation) to effect such transfer on Your behalf.

You remain personally responsible for any account deficits or obligations resulting from Your instructions. Alpaca's recovery rights shall survive the termination of the Custodial Account and this Agreement, subject to the following custodial limitations:

(a) Alpaca may satisfy Your obligations related to the Custodial Account by liquidating assets or offsetting balances in Your individual accounts or any other account You own in Your own name; (b) Alpaca will not offset Your personal, unrelated debts against assets owned by the Minor, nor will Alpaca offset an obligation of one Minor against the assets of a different Minor; (c) You authorize Alpaca to offset a deficit in the Custodial Account using funds from another Custodial Account for the same Minor, as a failed contribution or a reversed transfer of funds from Your individual account does not constitute a completed irrevocable gift; and (d) notwithstanding anything in this Agreement to the contrary, Alpaca will not debit your external bank accounts for Custodial Account deficits unless you provide separate, specific authorization for such transaction.

7. Risks.

I understand that all investments involve risk, that losses may exceed the principal invested, and that the past performance of a security, industry, sector, market, or financial product does not guarantee future results or returns.

8. Account Defaults.

I understand that My Account comes with many defaulted service instruction features and preferences. I further understand that I am not required to use these defaulted options or preferences and that once My Account is approved and opened, I have the sole discretion to control and adjust such defaulted service preferences that relate to my Account(s).

9. Knowledge of Account.

I understand that I am solely responsible for knowing the rights and terms for all securities purchased, sold and maintained in My Account, including, but not limited to, mergers, reorganizations, stock splits, name changes and/or symbol changes, and dividends. I further understand that certain securities may grant Me valuable rights that may expire unless I take specific action. These securities include bonds, convertible securities, warrants, stock rights and securities subject to exchange offers or tenders. I am responsible for knowing all expiration dates, redemption dates, and the circumstances under which rights associated with My securities may be called, canceled, or modified. You may, but are not obligated to, notify Me of any upcoming expiration or redemption dates, or take any action on My behalf without My specific instructions except as required by law and the rules of regulatory authorities.

10. Purchases.

All orders for the purchase of securities given for My Account will be authorized by Me and executed in reliance on My promise that an actual purchase is intended. It is My obligation to pay for purchases immediately or on Alpaca's demand. I understand Alpaca may, at any time, in its sole discretion and without prior notice to Me, prohibit or restrict My ability to trade securities. I further agree not to allow any person to trade for My Account unless a trading authorization for that person has been received and approved by Alpaca. You reserve the right to require full payment in cleared funds prior to the acceptance of any order. In the event that I fail to provide sufficient funds, You may, at Your option and without notice to Me, i) charge a reasonable rate of interest, ii) liquidate the Property subject of the buy order, or iii) sell other Property owned by Me and held in any of My Accounts. You may also charge any consequential loss to My Account. For purposes of this Agreement, "Property" shall mean all monies, contracts, and all related distributions, proceeds, products and accessions. This includes all such Property held, maintained or carried by Alpaca Securities LLC in any manner for Me.

11. Sales/Short Sales.

I promise to deliver all securities sold in My Account. Alpaca requires that a security be held in an account prior to the acceptance of a sell order with respect to such security unless the order is specifically designated as a "short sale" and is permitted as described below. If a security is not held in My Account and a sell order is processed, I must promptly deliver such security to Alpaca for receipt in good deliverable form on or before the settlement date. Any order accepted without negotiable certificates or positions in My Account will be subject, at Alpaca's sole discretion, to cancellation or buy-in. To ensure this will not occur, I agree to only place sell orders for securities owned by Me and held in My Account at the time My order is placed. Proceeds of a sale will not be paid to me or released into My Account until Alpaca has received the security in good deliverable form, whether from a transfer agent or from Me, and the settlement of the security is complete. If the security is not received on or before the settlement date, or as market conditions warrant, Alpaca may in its sole discretion purchase the security on the open market for My Account and may liquidate and close out any and all securities in My Account in order to pay for such purchase. In the event a security is bought in, I will be responsible for all resulting Losses incurred by Alpaca.

I understand that I may only place an order for a short sale which is specifically designated as a “short sale”, if my Local Jurisdiction permits short sales and if the arrangement through which I opened an account at Alpaca permits it. If permitted, I promise to provide collateral of a type and amount acceptable to Alpaca for all short sales in My Account. I understand that I may execute short sales only in a margin account (See Appendix A, as applicable) and that such execution must comply with applicable short sales rules. I further understand that Alpaca may charge me a fee to borrow a Security in connection with a short sale.

12. Platform Trading; Overview and Flow of Funds.

I UNDERSTAND AND ACKNOWLEDGE THAT THIS SECTION 12 WILL NOT APPLY UNLESS AND UNTIL I HAVE ENTERED INTO AN ALPACA CRYPTO CUSTOMER AGREEMENT. I UNDERSTAND THAT THE SERVICES OFFERED BY ALPACA CRYPTO ARE SEPARATE AND DISTINCT FROM THE SERVICES OFFERED BY ALPACA SECURITIES LLC UNDER THIS AGREEMENT AND THAT THIS AGREEMENT SOLELY GOVERNS MY RELATIONSHIP WITH ALPACA SECURITIES LLC AS IT RELATES TO MY ACCOUNT.

a) Multiple Accounts.

This Agreement solely governs the relationship between Me and Alpaca as it relates to My Account with Alpaca Securities LLC.

b) Flow of Funds.

I understand and acknowledge that the Platform is operated by each of Alpaca Securities LLC and Alpaca Crypto and that if I enter into the Alpaca Crypto Customer Agreement that I will have an Alpaca Crypto Account in addition to the Account provided by Alpaca Securities LLC. I understand that pursuant to the terms of the Alpaca Crypto Customer Agreement, I will have the ability to buy and sell cryptocurrency.

1. **Cryptocurrency Buy Orders.** When placing a cryptocurrency buy order through My Alpaca Crypto Account I explicitly agree, acknowledge and instruct Alpaca to transfer necessary funds for the purchase price of such cryptocurrency from My Account to My Alpaca Crypto Account held with Alpaca Crypto. I understand that transfers from My Account to Alpaca Crypto will be batched with transfers initiated by other customers on the same trading day. Batched transfers will be sent to Alpaca Crypto via a single transfer at the end of the relevant trading day rather than immediately upon such instruction by Me to You.
2. **Cryptocurrency Sell Orders.** I understand that when I place cryptocurrency sell orders through My Alpaca Crypto Account that the proceeds of these sales will be transferred into My Account consistent with the terms of the Alpaca Crypto Customer Agreement.
3. **Platform Disclosures.** Consistent with the terms of this Agreement, the Platform will include clear instructions and disclosures to Me at each point

on the Platform where I have the ability to place a cryptocurrency buy or sell order. Specifically, (1) in the cryptocurrency buy order context, I will be presented with an explicit disclosure informing Me that by placing a cryptocurrency buy order that I am instructing Alpaca Securities LLC to transfer the purchase price for such cryptocurrency from My Account to My Alpaca Crypto Account; and (2) in the cryptocurrency sell order context, I will be presented with an explicit disclosure informing Me that by placing the cryptocurrency sell order that I am instructing Alpaca Crypto to transfer settled funds from the cryptocurrency sale into My Account.

IN THE EVENT THAT I HAVE ANY QUESTIONS REGARDING ANY OF THE ABOVE REFERENCED PLATFORM DISCLOSURES OR I AM UNCERTAIN AS TO HOW OR IN WHAT CAPACITY CERTAIN TRANSACTIONS EFFECTED ON THE PLATFORM ARE HANDLED OR WILL BE TREATED, I AGREE THAT I WILL IMMEDIATELY CONTACT ALPACA AT COMPLIANCE@ALPACA.MARKETS PRIOR TO ENGAGING IN ANY TRADING AND/OR RELATED ACTIVITY ON THE PLATFORM.

4. **Regulatory Treatment of Funds.** I understand and acknowledge that My funds are treated differently and subject to separate regulatory regimes depending on whether or not such funds are held in My Account with Alpaca Securities LLC or if they are held in My Alpaca Crypto Account. Specifically, Alpaca Securities LLC is a member of SIPC, which protects securities customers of its members up to \$500,000 (including \$250,000 for claims for cash). Alpaca Crypto maintains My Alpaca Crypto Account at a bank which is a member of the Federal Deposit Insurance Corporation (“FDIC”). Funds held in my Alpaca Crypto Account are insured up to \$250,000 per depositor against the failure of the FDIC member bank. FDIC insurance does not protect against the failure of Alpaca Crypto or malfeasance by any Alpaca Crypto employee. Alpaca Crypto and the bank at which My Alpaca Crypto account is held are not members of FINRA or SIPC and therefore My funds held in the Alpaca Crypto Account are not SIPC protected. I understand and acknowledge that when accessing the Platform and engaging in various types of activity, including, without limitation, buying and selling cryptocurrency, that My funds will move from My Account to My Alpaca Crypto Account and vice versa, as detailed in this Section 12 and in the Alpaca Crypto Customer Agreement.

13. Assistance by Alpaca.

I understand that when I request assistance from Your employees in using the investment tools available on the Website, the App, or API, it will be limited to an explanation of the tool’s functionality and, if requested by Me, to the entry by Your employees of variables

provided by Me, and that such assistance does not constitute investment advice, an opinion with respect to the suitability of any transaction, or solicitation of any orders.

14. No Tax or Legal Advice.

I understand that Alpaca does not provide tax or legal advice.

15. Local Jurisdiction.

I understand that applicable laws, rules and regulations vary from jurisdiction to jurisdiction, and it is My responsibility to make sure that I comply with any and all local regulations, directives, restrictions and laws in my jurisdiction of residence ("Local Jurisdiction") prior to entering into this Agreement. I have verified and determined that entering into this Agreement and utilizing the services offered by Alpaca hereunder does not violate any such laws, rules or regulations of my Local Jurisdiction applicable to Me.

16. Electronic Access.

- a) I am solely responsible for keeping My Account numbers and PINs confidential. "PINs" shall mean My username and password.
- b) I agree and accept full responsibility for monitoring and safeguarding My Accounts and access to My Accounts.
- c) In the event that I wish to grant a third-party power and authority over My Account, I will complete a Limited Power of Attorney and Hold Harmless Agreement ("POA") and submit the executed POA to You. I understand and acknowledge that by executing and submitting a POA to You that I will be subject to the terms and conditions of such POA, and that the POA shall supplement the terms of this Agreement.
- d) Granting a third-party access to My Accounts does not in any way mitigate my responsibility for monitoring for loss, theft, or unauthorized access to My Accounts.
- e) I agree to immediately notify You in writing, delivered via email and a recognized international delivery service, if I become aware of:
 1. any loss, theft, or unauthorized use of My PINs or Account numbers;
 2. any failure by Me to receive any communication from You indicating that an order was received, executed or canceled, as applicable;
 3. any failure by Me to receive an accurate written confirmation of an execution;
 4. any receipt by Me of confirmation of an order, execution or cancellation, which I did not place;
 5. any inaccurate information in or relating to My Account balances, deposits, withdrawals, securities positions or transaction history; or
 6. any other unauthorized use or access of My Account.
7. Each of the events described in subsections 16(e)(1-6) shall be deemed a "Potential Fraudulent Event."

The use and storage of any information including, without limitation, My Account numbers, PINs, portfolio information, transaction activity, account balances and any other information or orders available on My wireless, web-enabled cellular telephone or similar wireless communications device (collectively, "Mobile Device") or My personal computer is at My own risk and is My sole responsibility. I represent that I am solely responsible for and

have authorized any orders or instructions appearing in, originating from, or associated with My Account, My Account number, and PINs. I agree to notify You immediately after I discover any Potential Fraudulent Event, but in no event more than twenty-four (24) hours following discovery. Upon request by You, I agree to report any Potential Fraudulent Event promptly to legal authorities and provide You a copy of any report prepared by such legal authorities. I agree to cooperate fully with the legal authorities and You in any investigation of any Potential Fraudulent Event, and I will complete any required affidavits promptly, accurately and thoroughly. I also agree to allow You access to My Mobile Device, My computer, and My network in connection with Your investigation of any Potential Fraudulent Event. I understand that if I fail to do any of these things, I may encounter delays in regaining access to the funds in My Account. I agree to indemnify and hold You and Your parent company and affiliates harmless from and against any losses arising out of or relating to any Potential Fraudulent Event.

17. Clearance of Trades.

I understand that You will clear all transactions for My Account(s) and are responsible for the bookkeeping of transactions. Until receipt from Me of written notice to the contrary, Alpaca may accept without inquiry or investigation, (i) orders for the purchase or sale of securities and other property on margin, if I have elected to have a margin account, or otherwise, and (ii) any other instructions concerning said accounts. The foregoing shall be effective as to My Account until written notice to the contrary is received from Me by Alpaca.

18. Review of Confirmations and Statements.

I agree that it is My responsibility to review order execution confirmations and statements of My Account promptly upon receipt. I agree to receive all confirmations and account statements, as well as all tax related documents, in electronic format. I understand that account statements will evidence all activity in My Account for the stated period, including securities transactions, cash balances, credits to My Account and all fees paid from My Account. These documents will be considered binding on Me unless I notify You of any objections within two (2) days from the date confirmations are sent and within ten (10) days after My Account statements are posted online. Such objection may be oral or in writing, but any oral objection must be immediately confirmed in writing. In all cases, You reserve the right to determine the validity of My objection. If I object to a transaction for any reason, I understand and agree that I am obligated to take action to limit any losses that may result from such transaction, or I will bear sole responsibility for any losses relating to the transaction, even if My objection to the transaction is ultimately determined to be valid. Nothing in this Section 18 shall limit My responsibilities as described in Sections 3 through 17 of this Agreement.

19. Important Information Needed to Open a New Account.

To help the government better detect the funding of terrorism and money laundering activities, federal law requires all financial institutions to obtain, verify, and record information that identifies each person who opens an account. Therefore, I understand

that when I open My Account, You will ask for My name, address, date of birth and other identifying information, and as applicable, the name, address, date of birth and other identifying information relating to the minor the benefit of which this account is being established for. You may also ask for copies of My driver's license, passport or other identifying documents. I understand that You may take steps to verify the accuracy of the information I provide to You in My Account application or otherwise, and that you may restrict My access to My Account pending such verification. I will provide prompt notification to You of any changes in the information, including, but not limited to, My name, address, email address and telephone number.

20. SIPC and Other Insurance Coverage.

I understand that Alpaca is a member of SIPC, which provides protection for accounts up to \$500,000 (including \$250,000 for claims of cash) per client as defined by SIPC rules. An explanatory brochure is available upon request via telephone at (202) 371-8300 or at www.sipc.org.

21. Telephone Conversations and Electronic Communications.

I understand and agree that You may record and monitor any telephone or electronic communications with Me. Unless otherwise agreed in writing in advance, You do not consent to the recording of telephone conversations by any third party or Me. I acknowledge and understand that not all telephone or electronic communications are recorded by You, and You do not guarantee that recordings of any particular telephone or electronic communications will be retained or capable of being retrieved.

22. Oral Authorization.

I agree that You shall be entitled to act upon any oral instructions given by Me so long as You reasonably believe such instruction was actually given by Me or my authorized agent.

23. Applicable Laws and Regulations.

All transactions in My Account will be subject to federal securities laws and regulations, the applicable laws and regulations of any state or jurisdiction in which Alpaca is registered, the rules of any self-regulatory organization of which Alpaca is a member and the rules, regulations, customs and usages of the exchange or market, and its clearing house, if any, where the transactions are executed. In no event will Alpaca be obligated to effect any transaction it believes would violate (i) any federal or state law, rule or regulation, (ii) any rules or regulations of any self-regulatory organization of which Alpaca is a member, or (iii) the laws, rules or regulations of any Local Jurisdiction.

24. Conflicts.

I understand that Alpaca may have, or in the future may make, arrangements with certain third parties ("Third Parties") to offer additional or supplemental services to me in connection with or in addition to My Account ("Third Party Services"). These Third Party Services are governed by the relevant documentation relating to such Third Party Services ("Third Party Documentation"). In connection with entering into this Agreement and Third Party Documentation, I understand that I am subject to certain limitations,

restrictions or prohibitions on My activity, including but not limited to activity with respect to My Account (“Prohibited Activity”). In the event that this Agreement or any Third Party Documentation is silent with respect to Prohibited Activity, or in the event of any conflict with respect to this Agreement and any Third Party Documentation regarding Prohibited Activity, the document or agreement containing the most restrictive terms shall prevail for purposes of this Agreement.

25. Distributions.

In the event that I sell a security prior to its ex-dividend/distribution date, and I receive the related cash/stock dividend or distribution in error, I direct You on My behalf to pay such dividend/distribution to the entitled purchaser of the securities I sold, and I guarantee to promptly reimburse You for, or deliver to You, said dividend or distribution.

26. Market Volatility; Market Orders; Limit Orders; and Queued Orders.

I understand that, whether I place a market or limit order, I will receive the price at which my order is executed in the marketplace. Particularly during periods of high volume, illiquidity, fast movement or volatility in the marketplace, the execution price received may differ from the quote provided on entry of an order, and I may receive partial executions of an order at different prices. I understand that Alpaca is not liable for any price fluctuations. I also understand that price quotes generally are for only a small number of shares as specified by the marketplace, and larger orders are relatively more likely to receive executions at prices that vary from the quotes or in multiple lots at different prices.

I understand that securities may open for trading at prices substantially higher or lower than the previous closing price or the anticipated price. If I place a market order (whether during normal market hours or when the market is closed), I agree to pay or receive the prevailing market price at the time My market order is executed, subject to the specific clarification above relating to buy orders. I understand that the price I pay may be significantly higher or lower than anticipated at the time I placed the order. To avoid buying a security at a higher price and possibly exceeding My purchasing power, I understand My option to enter a limit order. I also understand that limit orders may not be executed at any particular time, or at all if there is not sufficient trading at or better than the limit price I specify, and are only good until the end of the trading day in which they are entered. The Website contains further information regarding order types and limitations, which I agree to read and understand before placing such orders.

As a customer of Alpaca, I understand that orders submitted after regular trading hours that have **not** been elected to be eligible for execution during the extended hours trading session will be queued and routed to a market maker the following morning prior to the regular trading open. The order will then be eligible for execution during regular trading hours. “Extended hours trading” means trading outside of “regular trading hours.” Regular trading hours generally means the time between 9:30 a.m. and 4:00 p.m. Eastern Standard Time. Orders placed outside of regular trading hours are subject to the [Extended Hours Trading Risk Disclosure](#).

I understand that my order may fail to be sent to the market due to unforeseen circumstances or technical issues and that Alpaca is not liable in the event my order fails.

27. Bulletin Board/Pink Sheet Stocks.

I understand that from time to time, and at Your sole discretion, you may allow the trading of certain OTC Securities. I understand that under certain circumstances, a listed stock may be delisted and become an OTC Security. If I hold securities in my Account that become OTC Securities, I understand that Alpaca may, at its sole discretion, liquidate the OTC Securities and place the proceeds, if any, in My Account without prior notification to me.

Securities that trade over-the-counter, including bulletin board, pink sheet, and other thinly-traded securities (each, an “OTC Security” and collectively “OTC Securities”) present particular trading risks, in part because they are relatively less liquid and more volatile than actively traded securities listed on a major exchange. I understand that OTC Securities may be subject to different trading rules and systems than other securities and that I may encounter significant delays in executions, reports of executions and updating of quotations in trading OTC Securities. Alpaca, in its sole discretion, may require limit orders on certain OTC Securities transactions.

28. Fractional Trades.

Alpaca allows for the purchase of fractional shares. I acknowledge and understand that You round all holdings of fractional shares to the ninth decimal place, the value of fractional shares to the nearest cent, and any dividends paid on fractional shares to the lower cent. I understand that I may receive dividends in an amount less than my pro rata ownership would otherwise entitle me to receive, and in certain instances no dividend at all, subject to Your rounding methodology. I further understand that You may not accept dollar-based purchases or sales of less than \$1.00 and that I will receive proceeds from the sale of any whole or fractional shares rounded to the nearest cent.

I understand that if I enter repeated fractional orders with individual notional values of less than \$0.01, my account may be restricted.

To the extent that You must purchase or sell shares in the market to fulfill any part of my fractional order, the fractional component of that order will be fulfilled at the execution price received for the corresponding whole shares. I understand that You fulfill my fractional order for national exchange-listed securities (“NMS Securities”) entirely out of Your inventory and without purchasing or selling shares in the market (“Inventory Fulfillment”); you will endeavor to price such shares or fractional shares at a price between the National Best Bid and Offer (“NBBO”) at the time of the order for orders made during market hours. You will endeavor to price such orders between the best bid and offer at the time of the order.

I understand that fractional shares within My Account (i) are unrecognized, unmarketable, and illiquid outside the Alpaca platform, (ii) are not transferrable in-kind, and (iii) may only be liquidated and the proceeds transferred out via a wire transfer. I

acknowledge, that subject to applicable requirements, You may report holdings and transactions in My Account in terms of either U.S. Dollars, shares, or both.

I agree that my fractional shareholdings shall be treated as a “financial asset” under Article 8 of the Uniform Commercial Code.

Certain securities are not eligible for fractional trading during extended hours. During extended hours, orders in such securities may be placed for whole shares or queued for the opening of market hours. Trades outside of market hours are subject to the Extended Hours and Overnight Trading Risk Disclosure.

29. Margin Account and Trading.

The Margin Account and Trading appendix attached hereto as Appendix A sets forth the terms and conditions for Me to open a margin account. Appendix A shall only apply to this Agreement to the extent that Alpaca provides me notice of such, separately and in writing. The margin account allows Me to trade using unsettled funds up to the amount in My margin account if I am to receive margin credit. The margin account requires a minimum deposit of \$2,000 or 100 percent of the purchase price - whichever is less - in the account before purchasing a security on margin. I acknowledge it is important that I fully understand the risks involved in trading securities on margin as described in Appendix A and the Margin Disclosure Statement.

30. Use of Market Data and Waiver or Limitation of Liability.

I understand that each participating national securities exchange or association asserts a proprietary interest in all of the market data it furnishes to parties that disseminate said data. I understand that neither Alpaca nor any participating national securities exchange or association nor any supplier of market data guarantees the timeliness, sequence, accuracy, completeness, reliability or content of market information, or messages disseminated to or by any party. I understand that neither Alpaca nor any participating national securities exchange or association nor any supplier of market data warrants that the service will be uninterrupted or error-free. I further understand that AlpacaDB, Inc. provides market data to non-professional Alpaca customers. The terms “non-professional” and “nonprofessional” are defined within both the NASDAQ OMX Global Subscriber Agreement as well as the NYSE Market Data Display Services Agreement, and are incorporated by reference. I agree that My use of the App, the Website, the API, or any other Alpaca service is at My sole risk. I agree not to reproduce, distribute, sell or commercially exploit the market data in any manner without written consent from Alpaca. The Alpaca service is provided on an “as is,” “as available” basis without warranties of any kind, either express or implied, including, without limitation, those of merchantability and fitness for a particular purpose, other than those warranties which are implied by and incapable of exclusion, restriction or modification under the laws applicable to this Agreement.

NEITHER I NOR ANY OTHER PERSON SHALL HOLD ANY DISSEMINATING PARTY LIABLE IN ANY WAY FOR (A) ANY INACCURACY, ERROR OR DELAY IN, OR OMISSION OF, I) ANY SUCH DATA, INFORMATION OR

MESSAGE OR II) THE TRANSMISSION OR DELIVERY OF ANY SUCH DATA, INFORMATION OR MESSAGE, OR (B) ANY LOSS OR DAMAGE ARISING FROM OR OCCASIONED BY I) ANY SUCH INACCURACY, ERROR, DELAY OR OMISSION, II) NON-PERFORMANCE OR III) INTERRUPTION IN ANY SUCH DATA, INFORMATION OR MESSAGE, WHETHER DUE TO ANY NEGLIGENT ACT OR OMISSION BY ANY DISSEMINATING PARTY, OR TO ANY "FORCE MAJEURE" (E.G., FLOOD, EXTRAORDINARY WEATHER CONDITIONS, EARTHQUAKE OR OTHER ACT OF GOD, FIRE, WAR, INSURRECTION, RIOT, LABOR DISPUTE, ACCIDENT, ACTION OF GOVERNMENT, COMMUNICATIONS OR POWER FAILURE, EQUIPMENT OR SOFTWARE MALFUNCTION) OR ANY OTHER CAUSE BEYOND THE REASONABLE CONTROL OF ANY DISSEMINATING PARTY. NEITHER YOU NOR ANY DISSEMINATING PARTY SHALL BE LIABLE, AND I AGREE TO INDEMNIFY AND HOLD HARMLESS ALPACA AND SUCH DISSEMINATING PARTY, FOR ANY INACCURACY, ERROR OR DELAY IN, OR OMISSION OF, (1) ANY SUCH DATA, INFORMATION OR MESSAGE, OR (2) THE TRANSMISSION OR DELIVERY OF ANY SUCH DATA, INFORMATION OR MESSAGE; OR ANY LOSS OR DAMAGE ARISING FROM OR OCCASIONED BY (A) ANY SUCH INACCURACY, ERROR, DELAY OR OMISSION, (B) NON-PERFORMANCE, OR (C) INTERRUPTION IN ANY SUCH DATA, INFORMATION OR MESSAGE, DUE EITHER TO ANY ACT OR OMISSION BY ALPACA OR ANY DISSEMINATING PARTY OR TO ANY "FORCE MAJEURE" (AS DEFINED ABOVE) OR ANY OTHER CAUSE BEYOND THE REASONABLE CONTROL OF ALPACA OR ANY DISSEMINATING PARTY.

I UNDERSTAND AND AGREE THAT YOU WILL NOT BE LIABLE TO ME OR TO THIRD PARTIES, OR HAVE ANY RESPONSIBILITY WHATSOEVER, FOR ANY SPECIAL, INDIRECT, INCIDENTAL OR CONSEQUENTIAL DAMAGES (INCLUDING LOST PROFITS, TRADING LOSSES AND DAMAGES) THAT I MAY INCUR IN CONNECTION WITH MY USE OF THE SERVICE PROVIDED BY YOU UNDER THIS AGREEMENT.

31. Restrictions on Trading.

I understand that You may, in Your discretion, prohibit or restrict the trading of securities, or the substitution of securities, in any of My Accounts. I understand that You may execute all orders by Me on any exchange or market, unless I specifically instruct You to the contrary. In the event of a breach or default by Me under this Agreement, You shall have all rights and remedies available to a secured creditor under all applicable laws and in addition to the rights and remedies provided herein. I understand that You may at any time, at Your sole discretion and without prior notice to Me: prohibit or restrict My access to the use of the App or the Website or related services and My ability to trade, You may refuse to accept any of My transactions, You may refuse to execute any of My transactions, and/or You may terminate My Account. The closing of My Account will not affect the rights and/or obligations of either party incurred prior to the date My Account is closed.

Further, You will not tolerate any foul or abusive language, physical violence, threatening behavior, or other inappropriate conduct directed toward Your officers, employees, contractors or customers. If I engage in any such behavior, as determined by You in Your sole discretion, I agree that You are authorized to: (i) liquidate any securities, instruments or other property in My Account, (ii) send Me the proceeds, and (iii) close My Account(s). You will not be responsible for any losses caused by the liquidation of securities, instruments or other property pursuant to this paragraph, including but not limited to any tax liabilities.

32. Intraday Margin

Alpaca will monitor margin account activity for intraday margin exposure pursuant to FINRA Rule 4210. I understand that if My margin account incurs an intraday margin deficit, Alpaca will require Me to satisfy such deficit as promptly as possible and that My Account may be subject to a restriction preventing Me from creating or increasing a short position or debit balance (other than by closing a short position) if I fail to do so. Alpaca may, in its sole discretion, impose intraday margin requirements more stringent than those required by applicable rules and regulations, and may change such requirements at any time without prior notice to Me. I acknowledge it is important that I fully understand the risks involved in day trading securities, as described in the Day Trading Risk Disclosure.

Consistent with FINRA Regulatory Notice 26-10, Alpaca may implement the intraday margin standards described above on a phased basis during the permitted implementation period and may, in its sole discretion, continue to apply the former day trading margin requirements (including the pattern day trader designation) to any Account or category of Accounts during such period. Alpaca's choice of implementation approach for any Account does not create any right or entitlement on My part, and Alpaca may modify its implementation approach at any time without prior notice to Me.

33. Disclaimer of Liability; Indemnification.

Except as otherwise provided by law, You or any of Your affiliates shall not be liable for any expenses, losses, damages, liabilities, demands, charges, claims, penalties, fines and excise taxes of any kind or nature (including legal expenses and reasonable attorneys' fees) ("Losses") by or with respect to any matters pertaining to My Account, except to the extent that such Losses are actual Losses and are determined by a court of competent jurisdiction or an arbitration panel in a final non-appealable judgment or order to have resulted solely from Your or any of Your affiliates' gross negligence or willful misconduct. In addition, I agree that You and Your affiliates and respective partners, managing directors, officers, directors, employees and agents (collectively, "Indemnified Parties") shall have no liability for, and I agree to indemnify, defend and hold harmless Indemnified Parties from, all Losses that result from: (i) My or My agent's misrepresentation or alleged misrepresentation, or act or omission, (ii) Indemnified Parties following My or My agent's directions or failing to follow My or My agent's unlawful or unreasonable directions, (iii) any activities or services of the Indemnified Parties in connection with the My Account (including, without limitation, any technology services, reporting, trading, research or capital introduction services), or (iv) the failure by any person not controlled by the Indemnified Parties and their affiliates to perform any obligations to Me.

I consent to the use of automated systems or service bureaus by You and Your affiliates in conjunction with My Account, including, but not limited to, automated order entry and execution, record keeping, reporting and account reconciliation and risk management systems (collectively “Automated Systems”). I understand that the use of Automated Systems entails risks, such as interruption or delays of service, errors or omissions in the information provided, system failure and errors in the design or functioning of such Automated Systems (collectively, a “System Failure”) that could cause substantial damage, expense or liability to Me. I understand and agree that Indemnified Parties will have no liability whatsoever for any claim, loss, cost, expense, damage or liability of Me arising out of or relating to a System Failure.

I also agree that Indemnified Parties will have no responsibility or liability to Me in connection with the performance or non-performance by any Exchange, clearing organization, or other third party (including, without limitation, other clearing firms, banks and International Executing Brokers as defined infra) or any of their respective agents or affiliates, of its or their obligations relative to any Securities. I agree that Indemnified Parties will have no liability, to Me or to third parties, or responsibility whatsoever for: (i) any Losses resulting from a cause over which Indemnified Parties do not have direct control, including but not limited to the failure of mechanical equipment, unauthorized access, theft, operator errors, government restrictions, force majeure (as defined in Section 30), Exchange rulings or suspension of trading; and (ii) any special, indirect, incidental, consequential, punitive or exemplary damages (including lost profits, trading losses and damages) that I may incur in connection with My use of the brokerage and other services provided by Indemnified Parties under this Agreement. Further, if I authorize or allow third parties to gain access to Your services, including My Accounts, I will defend and indemnify You against any Losses arising out of claims or suits by such third parties based upon or relating to such access and use. Alpaca does not warrant against loss of use or any direct, indirect or consequential damages or losses to Me caused by My assent, expressed or implied, to a third party accessing My Account or information, including access provided through any other third party systems or sites.

34. Mutual Fund Transactions.

In the event that I purchase or hold a mutual fund, I agree to read and understand the terms of its prospectus. I understand that certain mutual funds reserve the right to change their purchasing, switching or redemption procedures and/or suspend or postpone redemptions under certain market conditions. I further understand that any mutual fund order entered with You is placed by You on a best efforts basis as prescribed and recognized by the individual fund, and that You are not responsible for unexecuted orders due to the failure of any communication system. I agree to be fully responsible for the information contained within the mutual fund prospectus and to hold You harmless for any deficiencies contained therein. I authorize You to act as My agent in the purchase and redemption of fund shares.

35. Exchange Traded Funds.

Investors should consider the investment objectives and unique risk profile of Exchange Traded Funds (ETFs) carefully before investing. ETFs are subject to risks similar to those of other diversified portfolios. Leveraged and Inverse ETFs may not be suitable for all

investors and may increase exposure to volatility through the use of leverage, short sales of securities, derivatives and other complex investment strategies. Although ETFs are designed to provide investment results that generally correspond to the performance of their respective underlying indices, they may not be able to exactly replicate the performance of the indices because of expenses and other factors. A prospectus contains this and other information about the ETF and should be read carefully before investing.

Customers should obtain prospectuses from issuers and/or their third party agents who distribute and make prospectuses available for review. ETFs are required to distribute portfolio gains to shareholders at year end. These gains may be generated by portfolio rebalancing or the need to meet diversification requirements. ETF trading will also generate tax consequences. Additional regulatory guidance on Exchange Traded Products can be found by [clicking here](#).

36. Foreign Securities and Foreign Markets.

If I elect to access or trade securities listed on non-U.S. exchanges (“Foreign Securities”), I acknowledge and agree that:

- a) Foreign Securities are subject to additional risks, including currency fluctuation, differing settlement practices, varying liquidity, foreign regulatory regimes, and foreign taxes and fees;
- b) Alpaca may execute, clear, or custody Foreign Securities through foreign brokers, custodians, or agents, which may be outside U.S. regulatory jurisdiction;
- c) SIPC protection may not apply to Foreign Securities held outside the custody or control of Alpaca Securities LLC, and foreign currency held as an investment is not covered by SIPC;
- d) Alpaca may restrict, delay, or decline orders in Foreign Securities due to market conditions, regulatory limits, operational constraints, or risk considerations;
- e) Access to Foreign Markets is provided on an “as-available” basis and may be modified or suspended at any time without prior notice;
- f) My access to and use of Foreign Markets is governed by the Foreign Markets and Global Equities Addendum, which I agree to by enabling such trading; and
- g) Alpaca may publish additional market-specific, country-specific, or exchange-specific disclosures, rules, or requirements applicable to certain Foreign Markets. Such disclosures, as updated from time to time and published on Alpaca’s website or platform, are incorporated by reference into this Agreement and are binding on Me upon access to or trading in the applicable Foreign Market.

37. Effect of Attachment or Sequestration of Accounts.

You shall not be liable for refusing to obey any orders given by or for Me with respect to any of My Accounts that have been subject to an attachment or sequestration in any legal proceeding against Me, and You shall be under no obligation to contest the validity of any such attachment or sequestration.

38. Event of Death.

It is agreed that in the event of My death or the death of one of the joint account holders, the representative of My estate or the survivor or survivors shall immediately give You written notice thereof, and You may, before or after receiving such notice, take such proceedings, require such papers and inheritance or estate tax waivers, retain such portion of and/or restrict transactions in the Account as You may deem advisable to protect You

against any tax, liability, penalty or loss under any present or future laws or otherwise. Notwithstanding the above, in the event of My death or the death of one of the joint account holders, all open orders shall be canceled, but You shall not be responsible for any action taken on such orders prior to the actual receipt of notice of death. Further, You may, in Your discretion, close out any or all of the Accounts without awaiting the appointment of a personal representative for My estate and without demand upon or notice to any such personal representative. The estate of any of the account holders who have died shall be liable, and each survivor shall continue to be liable, jointly and severally, to You for any net debit balance or loss in said account in any way resulting from the completion of transactions initiated prior to the receipt by You of the written notice of the death of the decedent or incurred in the liquidation of the Account or the adjustment of the interests of the respective parties. Such notice shall not affect Your rights under this Agreement to take any action that You could have taken if I had not died.

39. Tax Reporting; Tax Withholding.

The proceeds, along with required cost basis information of sale transactions and dividend/interest paid, will be reported to the Internal Revenue Service in accordance with applicable law.

a) U.S. Persons.

This section is applicable if I am a U.S. person. Under penalties of perjury, I certify that (1) the taxpayer identification number that I have provided or will provide to You (including, without limitation, any taxpayer identification number on any Form W-9 that I have provided or will provide to You) is My correct taxpayer identification number (or I am waiting for a number to be issued to Me), and (2) I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified Me that I am no longer subject to backup withholding, and (3) I am a U.S. citizen or other U.S. person (defined below). If a correct Taxpayer Identification Number is not provided, I understand I may be subject to backup withholding tax at the appropriate rate on all dividends, interest and gross proceeds paid to me. Backup withholding taxes are sent to the IRS and cannot be refunded by Alpaca. I further understand that if I waive tax withholding and fail to pay sufficient estimated taxes to the IRS, I may be subject to tax penalties.

b) Non-U.S. Persons.

This section is applicable if I am not a U.S. person. I certify that I fully understand all the information on any Form W-8BEN or Form W-8BEN-E that I have submitted or will submit to You. Under penalties of perjury, I declare that (i) I have examined all the information (including, without limitation, all the information in the English language) on any Form W-8BEN or Form W-8BEN-E that I have submitted or will submit to You and (ii) to the best of my knowledge and belief all such information is true, correct, and complete. I authorize You to provide any such Form W-8BEN or Form W-8BEN-E to any withholding agent that has control,

receipt, or custody of the income of which I am the beneficial owner or any withholding agent that can disburse or make payments of the income of which I am the beneficial owner. I agree that I will submit a new Form W-8BEN or Form W-8BEN-E to You within 30 days if any certification made on any previously submitted Form W-8BEN or Form W-8BEN-E becomes incorrect. I understand that the Internal Revenue Service does not require My consent to any provisions of such Form W-8BEN or Form W-8BEN-E other than the certifications required to establish My status as a non-U.S. individual and, if applicable, obtain a reduced rate of withholding.

If I have been notified by the IRS that I am currently subject to backup withholding because I have failed to report all interest and dividends on My tax return, I will send an email to bd-ops@alpaca.markets with "Backup Withholding" in the title.

Definition of a U.S. person: For federal tax return purposes, I am considered a U.S. person if I am: An individual who is a U.S. citizen or U.S. resident alien, a partnership, corporation, company, or association created or organized in the United States or under the laws of the United States, an estate (other than a foreign estate), or a domestic trust (as defined in Regulations section 301.7701-7).

40. Equity Orders and Payment For Order Flow.

SEC rules require all registered broker-dealers to disclose their policies regarding any "payment for order flow" arrangement in connection with the routing of customer orders. "Payment for order flow" includes, among other things, any monetary payment, service, property, or other benefit that results in remuneration, compensation, or consideration to a broker-dealer from any broker-dealer in return for directing orders. You transmit customer orders for execution to various exchanges or market centers based on a number of factors. These include: the size of order, trading characteristics of the security, favorable execution prices (including the opportunity for price improvement), access to reliable market data, availability of efficient automated transaction processing and reduced execution costs through price concessions from the market centers. Certain of the market centers may execute orders at prices superior to the publicly quoted market in accordance with their rules or practices. While a customer may specify that an order be directed to a particular market center for execution, the order-routing policies, taking into consideration all of the factors listed above, are designed to result in favorable transaction processing for customers. The nature and source of any payments and/or credits received by You in connection with any specific transactions will be furnished upon written request.

41. Free Credit Balances.

I understand that Alpaca shall not be obligated to pay interest on any free credit balance in my Account, and without notice, can use any and all free credit balances to the extent necessary to satisfy any debts arising in any of My Accounts. I further understand that Alpaca receives from its custodian banks and clearing relationships, interest and/or rebates derived from customer margin debt balances and customer free credit balances.

42. Bank Sweep Program.

- a) **Enrollment.** By agreeing to the [Alpaca Securities LLC FDIC Bank Sweep Program Terms and Conditions](#) (the “Program Terms”), I understand that I am opting to enroll in the Alpaca FDIC Bank Sweep Program (the “Program”).
- b) **The Program.** By enrolling in the Program, I understand and agree that my funds are treated differently and subject to separate regulatory regimes depending on whether or not my funds are held in my Account, or held in the Program. Specifically, Alpaca is a member of SIPC, which protects securities customers of its members up to \$500,000 (including \$250,000 for claims for cash). The Federal Deposit Insurance Corporation (FDIC) insures up to \$250,000 per deposit against the failure of an FDIC member bank. Therefore, when my funds are maintained in My Account, my funds are SIPC insured, but not eligible for FDIC insurance. Funds maintained in the Program are obligations of those banks and are intended to be eligible for pass-through FDIC insurance, but are not subject to SIPC coverage. FDIC insurance coverage does not protect against the failure of Alpaca or malfeasance by any Alpaca employee. The Program Banks are not members of FINRA or SIPC and therefore funds held in the Program are not SIPC protected. I understand that when I engage in various transfer activities, my funds will move between My Account and into the Program. Therefore, depending on where my funds are maintained, my funds will be treated differently and subject to different insurance coverage. Cash deposits at the banks participating in the Program (“Program Banks”) are obligations of those banks. The deposit amounts are not direct obligations of Yours and are not securities. SIPC does not cover customer cash balances held in banks (“Program Banks”) participating in the Alpaca FDIC Bank Sweep Program (the “Program”). By participating in the Program, I understand that my funds held by Program Banks may be eligible for FDIC insurance coverage. I am responsible for monitoring the total amount of deposits I have at each bank if I have deposits held there outside of the Program, to determine the extent of FDIC insurance available to Me.
- c) **Interest.** Each day, interest is calculated on the applicable balance and the daily interest amount is rounded up to the nearest mil (\$0.001). Therefore, no interest may be paid if the daily calculated amount is less than half a mil. Interest is paid out and posted once a month, generally in the third week of the month. The interest rate paid under the Program on cash investments in My Account may vary as indicated in the Program Terms. My current balance in the Program can be remitted to Me upon request; fees may apply
- d) **Potential Conflict of Interest.** Alpaca earns money on the difference (or spread) between the rate at which the Program Bank pays Me for the cash and the fees paid to Alpaca by the Program Banks for the use of My cash, so Alpaca has an incentive to send My cash to the Program Banks, and I receive a lower yield than if the Program Banks did not pay Alpaca a fee. You may, without My prior affirmative consent, modify Your current Program, stop offering the Program, change the product to which the cash in My Account is automatically swept, or change the mechanism by which it is swept. My enrollment in the Program

signifies My positive consent to participate and accept the Program Terms. I may opt out of the Program at any time by sending an e-mail to support@alpaca.markets, or contacting My broker if applicable. For information about FDIC insurance as well as other important disclosures about the Program, visit Alpaca's [Disclosure Library](#) under section "FDIC Bank Sweep Disclosures".

- e) BASED ON THE FOREGOING, I UNDERSTAND AND AGREE THAT I MAY NOT BE ELIGIBLE FOR FDIC PASS-THROUGH INSURANCE COVERAGE FOR ALL FUNDS MAINTAINED IN THE PROGRAM. MY TOTAL FDIC INSURANCE COVERAGE ELIGIBILITY IS DEPENDENT ON THE AGGREGATE BALANCE MAINTAINED IN THE PROGRAM IN RELATION TO THE NUMBER OF PROGRAM BANKS MAINTAINING MY FUNDS, SUBJECT TO THE APPLICABLE FDIC COVERAGE SET FORTH IN THE PROGRAM TERMS. I UNDERSTAND THAT I WILL BE PROVIDED ACCOUNT STATEMENTS THAT WILL DETAIL MY BALANCE AT EACH PROGRAM BANK. I AGREE TO PROMPTLY REVIEW EACH STATEMENT UPON RECEIPT AND TO IMMEDIATELY SEND ANY QUESTIONS IN WRITING TO ALPACA REGARDING SUCH ACCOUNT STATEMENTS.

43. Fees and Charges.

I understand that there may be charges for certain services provided under this Agreement. Those charges are included in the [Alpaca Securities Brokerage Fee Schedule](#). I also agree to pay all applicable federal, state and local taxes. I authorize Alpaca to automatically debit My Account for any such charges, fees and taxes. I acknowledge that the prevailing rate of fees may change and that change may occur without notice. I agree to be bound by such changes. I specifically agree to pay a reasonable rate of interest on the principal amount of any debit balance carried with respect to My Account. Interest may be charged against My Account in connection with cash withdrawals, if the proceeds from a security sale are disbursed before the regular settlement date of the sale transaction and late payments. If Alpaca receives My payment for securities purchases in a cash account after the settlement date, I shall be charged a late payment fee plus a daily interest charge on the debit balance until Alpaca is fully paid. Charges will be calculated using a prevailing interest rate. The charges shall accrue until paid and posted to My Account on the day following payment of the debit balance. Interest due on My Account is payable on demand. I also agree to pay such expenses incurred by You in connection with the collection of any unpaid balance due on My Accounts, including, but not limited to, attorney's fees allowed by law.

44. ACH Transfers.

I authorize Alpaca, at its discretion and without further prior notice, to utilize an electronic check process or Automated Clearing House ("ACH") facility to draft funds in the amount of any of My checks payable to Alpaca, its agents or assigns. Money deposited via ACH is normally not available for withdrawal for 5 to 10 business days. Within 63 days of the date of My ACH deposit, My funds may only be withdrawn to the bank account from which such funds were deposited. I understand that for the ACH transfers to be established, at least one common name must match exactly between My

Alpaca and bank accounts. To send and receive ACHs, My bank must be a member of the ACH system. For ACH transactions, I hereby grant You limited power of attorney for purposes of redeeming any shares in My Account if the payment exceeds available free credits and direct You to accept any orders to make payments to an authorized bank account and to fulfill these orders through the redemption of shares in My Account if the payment exceeds available free credits. In addition, if I or any joint account owner decides to rescind an ACH transfer, I hereby direct and grant You power of attorney to redeem any shares necessary to fulfill and make such rescission regardless if I incur any loss.

An ACH bank reversal may occur when (A) there are insufficient funds in My bank account, (B) there is a duplicate transaction, (C) the transaction is denied, or (D) the type of account is incorrect. I acknowledge that in the event of an ACH bank reversal, I will incur a fee. Before making an ACH transfer, I agree to check Alpaca's most recent Fees Schedule, available upon request. I agree that I am solely liable and responsible for any ACH reversal fees that I incur.

45. Electronic Delivery of Trade and Account Information; Notice.

You may send Me all communications regarding My Account, or an alert that a communication has been posted to the secure section of the Website, the App, or the customer document portal located at <https://documents.alpaca.markets/login> (the "Portal") and is available for viewing, at the email address I provided in My Account application or at another address I later give You in writing or by email at least ten (10) calendar days before delivery. These communications include account statements, trade confirmations, margin calls, notices, disclosures, regulatory communications, and other information, documents, data, and records regarding My Account. You are the party that effects delivery of such communications. All communications sent in this manner, whether in writing or otherwise, are deemed given to Me personally, whether or not I actually receive them.

46. Arbitration.

a) **This Agreement contains a pre-dispute arbitration clause. By signing an arbitration agreement, the parties agree as follows.**

- 1. All parties to this Agreement are giving up the right to sue each other in court, including the right to a trial by jury, except as provided by the rules of the arbitration forum in which a claim is filed.**
- 2. Arbitration awards are generally final and binding; a party's ability to have a court reverse or modify an arbitration award is very limited.**
- 3. The ability of the parties to obtain documents, witness statements and other discovery is generally more limited in arbitration than in court proceedings.**
- 4. The arbitrators do not have to explain the reason(s) for their award unless, in an eligible case, a joint request for an explained decision has been submitted by all parties to the panel at least 20 calendar days prior to the first scheduled hearing date.**
- 5. The panel of arbitrators will typically include a minority of arbitrators who were or are affiliated with the securities industry.**
- 6. The rules of some arbitration forums may impose time limits for**

bringing a claim in arbitration. In some cases, a claim that is ineligible for arbitration may be brought to court.

7. The rules of the arbitration forum in which the claim is filed, and any amendments thereto, shall be incorporated into this Agreement

b) Any controversy or claim arising out of or relating to this Agreement shall be settled by arbitration in accordance with the rules of FINRA Dispute Resolution, Inc. (“FINRA DR”). The Director of Dispute Resolution Services will decide which of FINRA’s hearing locations will be the hearing location for the arbitration.

c) This agreement to arbitrate constitutes a waiver of the right to seek a judicial forum unless such a waiver would be void under the federal securities laws. If I am a foreign national, non-resident alien, or if I do not reside in the United States, I agree to waive My right to file an action against You in any foreign venue.

d) No person shall bring a putative or certified class action to arbitration, nor seek to enforce any pre-dispute arbitration agreement against any person who has initiated in court a putative class action; or who is a member of a putative class who has not opted out of the class with respect to any claims encompassed by the putative class action until:

- 1. the class certification is denied;**
- 2. the class is decertified; or**
- 3. the customer is excluded from the class by the court.**

Such forbearance to enforce an agreement to arbitrate shall not constitute a waiver of any rights under this Agreement except to the extent stated herein.

e) If you are a foreign national, non-resident alien, or if you do not reside in the United States, you agree to waive your right to file an action against Alpaca in any foreign venue.

47. Electronic Signatures and Modifications to the Agreement.

I agree to transact business with You electronically. By electronically signing an application for an account, I acknowledge and agree that such electronic signature is valid evidence of My consent to be legally bound by this Agreement and such subsequent terms as may govern the use of Your services. The use of an electronic version of any document fully satisfies any requirement that the document be provided to Me in writing. I accept notice by electronic means as reasonable and proper notice, for the purpose of any and all laws, rules and regulations. I acknowledge and agree that Alpaca may modify this Agreement from time-to-time, and I agree to consult the Website from time-to-time for the most up-to-date Agreement. The electronically stored copy of this Agreement is considered to be the true, complete, valid, authentic and enforceable record of the Agreement, admissible in judicial or administrative proceedings to the same extent as if the documents and records were originally generated and maintained in printed form. I agree to not contest the admissibility or enforceability of Alpaca’s electronically stored copy of the Agreement.

- a) **Consent to Electronic Delivery of Documents.** By agreeing to electronic delivery, I am giving My informed consent to electronic delivery of all Account Documents as defined below, other than those I have specifically requested to be delivered in paper form. "Account Documents" include notices, disclosures, current and future account statements, regulatory communications (such as prospectuses, proxy solicitations, and privacy notices), trade confirmations, and any other information, documents, data, and records regarding My Account and the services (including amendments to this Agreement) delivered or provided to me by Alpaca, the issuers of the securities and/or other property in which I invest, and any other parties. I agree that I can download, save, and/or print any Account Documents I receive via electronic delivery, including any Account Documents made available to Me through the Portal, and retain them for my records.
- b) **Electronic Delivery System.** I acknowledge that Your primary methods of communication with Me include, without limitation, (A) posting information on the Website, (B) providing information via the App, (C) sending email(s) to My email address of record, (D) posting documents in the Portal, and, to the extent required by law, (E) providing Me with notice(s) that will direct Me to the App, the Website, or the Portal where I can read and print such information. Unless otherwise required by law, You reserve the right to post Account Documents on the Website or the Portal without providing notice to Me. Further, You reserve the right to send Account Documents to My postal or email address of record, or via the App. I agree that all Account Documents provided to Me in any of the foregoing manners, including any Account Document posted in the Portal, is considered delivered to Me personally when sent or posted by Alpaca, whether I receive or access it or not. I understand that Alpaca makes My account statements, trade confirmations, and certain other documents regarding My Account available to Me through the Portal, which I access through an authenticated login using credentials I have established. Alpaca maintains reasonable safeguards designed to protect the security and confidentiality of My personal financial information delivered or made available through the Website, App, or Portal.
- c) **Email Notifications.** All email notifications regarding Account Documents will be sent to My email address of record. For an Account with more than one owner, custodian, or authorized representative, Alpaca may send a single notification of document availability per Account. I understand that email messages may fail to transmit promptly or properly, including being delivered to SPAM folders. I further understand that it is my sole responsibility to ensure that any emails from Alpaca are not marked as SPAM. Regardless of whether or not I receive an email notification, I agree to check the Website and the Portal regularly to avoid missing any information, including, without limitation, time-sensitive or otherwise important communication.
- d) **The Internet is not Secure.** I acknowledge that the Internet is not a secure network and agree that I will not send any confidential information, including, without limitation, Account numbers or passwords, in any unencrypted emails. I also understand that communications transmitted over the Internet may be accessed by

unauthorized or unintended third parties and agree to hold You and Your parent company and affiliates harmless for any such access regardless of the cause.

- e) **Review of Account Documents.** I agree to promptly and carefully review all Account Documents when they are delivered and to notify Alpaca in writing if I object to the information provided. I must provide any such objection within two (2) days from the date a trade confirmation is sent, and within ten (10) days after an account statement is posted online or otherwise delivered. For all other Account Documents, I must provide any such objection within five (5) calendar days of delivery. If I fail to object in writing within the applicable period, Alpaca is entitled to treat such information as accurate and conclusive.
- f) **Costs.** Potential costs associated with electronic delivery of Account Documents may include charges from Internet access providers and telephone companies, and I agree to bear these costs. Alpaca will not charge Me additional online access fees for receiving electronic delivery of Account Documents.
- g) **Archival.** Through the Website and the Portal, as applicable to the delivery channel for My Account, My Account Documents will remain available to Me for a rolling period of at least one (1) year. Upon My request, I may obtain copies of earlier documents for up to six (6) years for account statements, and three (3) years for trade confirmations.
- h) **Revocation of Consent.** Subject to the terms of this Agreement, I may revoke or restrict My consent to electronic delivery of Account Documents at any time by notifying Alpaca in writing of my intention to do so. I also understand that I have the right to request paper delivery of any Account Document that the law requires Alpaca to provide Me in paper form. I understand that if I revoke or restrict My consent to electronic delivery of Account Documents or request paper delivery of same, Alpaca, in its sole discretion, may charge Me a reasonable service fee for the delivery of any Account Document that would otherwise be delivered to Me electronically, restrict or close My Account, and/or terminate My access to Alpaca's services. I understand that neither My revocation nor restriction of consent, My request for paper delivery, nor Alpaca's delivery of paper copies of Account Documents will affect the legal effectiveness or validity of any electronic communication provided while My consent was in effect.
- i) **Duration of Consent.** My consent to receive electronic delivery of Account Documents will be effective immediately and will remain in effect unless and until either I or Alpaca revokes it. I understand that it may take up to three (3) business days to process a revocation of consent to electronic delivery, and that I may receive electronic notifications until such consent is processed.
- j) **Hardware and Software Requirements.** I understand that in order to receive electronic deliveries, I must have access to the Internet, a valid email address, and the ability to download such applications as Alpaca may specify and to which I have access. I also understand that if I wish to download, print, and/or save any information I wish to retain, I must have access to a printer or other device in order

to do so.

- k) **Consent and Representations.** I hereby agree that I have carefully read the above information regarding informed consent to electronic delivery and fully understand the implications thereof. Additionally, I hereby agree to all conditions outlined above with respect to electronic delivery of any Account Document. I will maintain a valid email address and continue to have access to the Internet. If my email address changes, I agree to immediately notify Alpaca of my new email address in writing. If I opened My Account through My introducing firm, I may update My email address of record through My introducing firm.

48. **Miscellaneous Provisions.**

The following provisions shall also govern this Agreement:

- a) **Headings.** The heading of each provision hereof is for descriptive purposes only and shall not be (1) deemed to modify or qualify any of the rights or obligations set forth herein or (2) used to construe or interpret any of the provisions hereunder.
- b) **Binding Effect; Assignment.** This Agreement shall bind My heirs, assigns, executors, successors, conservators and administrators. I may not assign this Agreement or any rights or obligations under this Agreement without first obtaining your prior written consent. You may assign, sell or transfer My Account and this Agreement, or any portion thereof, at any time, without My prior consent.
- c) **Severability.** If any provisions or conditions of this Agreement are or become inconsistent with any present or future law, rule or regulation of any applicable government, regulatory or self-regulatory agency or body, or are deemed invalid or unenforceable by any court of competent jurisdiction, such provisions shall be deemed rescinded or modified, to the extent permitted by applicable law, to make this Agreement in compliance with such law, rule or regulation, or to be valid and enforceable, but in all other respects, this Agreement shall continue in full force and effect.
- d) **Entirety of Agreement.** This Agreement, any attachments hereto, other agreements and policies referred to in this Agreement (including, but not limited to, the Website postings), and the terms and conditions contained in My Account statements and confirmations, contain the entire agreement between Alpaca and Me and supersedes all prior or contemporaneous communications and proposals, whether electronic, oral or written, between Alpaca and Me, provided, however, that any and all other agreements between Alpaca and Me, not inconsistent with this Agreement, will remain in full force and effect.
- e) **Website Postings.** I agree and understand that Alpaca may post other specific agreements, disclosures, policies, procedures, terms and conditions that apply to My use of the App, the Website or My Account on the Website. I understand that it is My continuing obligation to understand the terms of such postings, and I agree to be bound by such postings as are in effect at the time of My use.

- f) **Amendment.** You may at any time amend this Agreement without prior notice to Me. The current version of the Agreement will be posted on the Website, and the effective date will be reflected on the posted version. My continued Account activity after such amendment constitutes My agreement to be bound by all then in effect amendments to the Agreement, regardless of whether I have actually reviewed them. Continued use of the App, the Website or any other Alpaca services after such posting will constitute My acknowledgment and acceptance of such amendment. I agree to regularly consult the Website for up-to-date information about Alpaca services and any modifications to this Agreement. You are not bound by any verbal statements that seek to amend the Agreement.
- g) **Termination.** You may terminate this Agreement, or close, deactivate or block access to My Account at any time at Your sole discretion. I will remain liable to You for all obligations incurred in My Account or otherwise, whether arising before or after termination. I may terminate this Agreement after paying any obligations owed upon written notice. This Agreement survives termination of My Account.

I understand that if My Account is established through an introducing broker and that introducing broker later terminates its relationship with Alpaca, I must comply with the offboarding terms established by the introducing broker and/or Alpaca, which may include, but are not limited to: transferring My Account or assets to another broker; liquidating my positions and withdrawing my assets; or transferring my assets to a different account type with Alpaca. If I fail to comply with the offboarding terms and continue to maintain My Account at Alpaca, Alpaca may charge My Account a fee as set forth in the [Alpaca Securities Brokerage Fee Schedule](#). I understand and agree that Alpaca may deduct any fees directly from the cash balance in My Account and if sufficient cash is not available, Alpaca may liquidate securities or other assets in My Account, as permitted by applicable law and this Agreement, to satisfy the fee.

- h) **No Waiver; Cumulative Nature of Rights and Remedies.** I understand that Your failure to insist at any time upon strict compliance with any term contained in this Agreement, or any delay or failure on Your part to exercise any power or right given to You in this Agreement, or a continued course of such conduct on Your part, shall at no time operate as a waiver of such power or right, nor shall any single or partial exercise preclude any other further exercise. All rights and remedies given to You in this Agreement are cumulative and not exclusive of any other rights or remedies to which You are entitled.
- i) **Governing Law.** This Agreement and all transactions made in My Account shall be governed by the laws of the State of New York (regardless of the choice of law rules thereof), except to the extent governed by the federal securities laws, FINRA Rules, and the regulations, customs and usage of the exchanges or market (and its clearing house) on which transactions are executed.
- j) **Non-English Agreement and Disclosure Translations.** This Agreement may be

written in both English and translated into other languages. The English version of this Agreement shall be deemed the official version of this Agreement. Any translation is provided for convenience purposes only. In case there is any discrepancy between the two versions, the English one shall prevail.

49. No Recommendations.

I understand that the Alpaca Agreement is not a recommendation to make a specific investment or use any specific investment strategy. Alpaca provides no investment, legal or tax advice. An Alpaca account is not necessarily suitable for everyone. I agree to examine my investment objectives, financial resources and risk tolerance to determine whether the Alpaca account meets my investment needs.

By using a margin account, as applicable, I acknowledge that I am subject to all other terms and conditions provided in this Agreement, NASDAQ OMX Global Subscriber Agreement (if applicable), AGREEMENT FOR MARKET DATA DISPLAY SERVICES (if applicable), Alpaca Use and Risk Disclosures, Alpaca PFOF Disclosure, Alpaca Privacy Notice, Alpaca Extended Hours Trading Risk Disclosure, and Alpaca Business Continuity Plan Summary, Alpaca Margin Disclosure Statement (if applicable), which are incorporated by reference and constitute part of this Agreement.

You also acknowledge that the Agreement contains a pre-dispute arbitration clause in Section 46 of this Agreement.

BY ELECTRONICALLY SIGNING BELOW, I AGREE TO THIS AGREEMENT.

DATE:

ACCEPTED BY ALPACA SECURITIES LLC

DATE:

Appendix A: Margin Account and Trading.

Margin trading involves interest charges and risks, including the potential to lose more than deposited or the need to deposit additional collateral in a falling market. Before using margin, customers must determine whether this type of trading strategy is right for them given their specific investment objectives, experience, risk tolerance, and financial situation. I understand that My Account with You will constitute a margin account and that by entering into this Agreement, I agree to each of the terms and provisions of this appendix.

1. Definitions. For the purposes of this appendix, “securities, commodities, and other property,” shall include, but not be limited to, money, securities, and commodities of every kind and nature and all contracts and options relating thereto, whether for present or future delivery.
2. Lien. All of your securities, commodities, and other property, which Alpaca may at any time be carrying, or which may at any time be in Alpaca’s possession or under Alpaca’s control, shall be subject to a general lien and security interest in Alpaca’s favor for the discharge of all of My indebtedness and other obligations to Alpaca, without regard to Alpaca having made any advances in connection with such securities and other property and without regard to the number of Accounts I may have with Alpaca. In enforcing its lien, Alpaca shall have the discretion to determine which securities and property are to be sold and which contracts are to be closed.
3. Liquidation. If, in its discretion, Alpaca considers it necessary for protection to require additional collateral, or in the event that a petition in bankruptcy is filed, or the appointment of a receiver is filed by or against You, or an attachment is levied against Your Account(s), or in the event of death (in case of partnerships), Alpaca shall have the right to sell any or all securities, commodities, and other property in Your Account(s) with Alpaca, to buy any or all securities, commodities, and other property which may be short in such accounts, to cancel any open orders and to close any or all outstanding contracts, all without demand for margin or additional margin, notice of sale or purchase, or other notice or advertisement. Any such sales or purchases may be made at Alpaca’s discretion on any exchange or other market where such business is usually transacted, or at public auction or private sale, and Alpaca may be the purchaser for its own account. It is understood that a prior demand, or call, or prior notice of the time and place of such sale or purchase shall not be considered a waiver of Alpaca’s right to sell or buy without demand or notice.
4. Payment of Indebtedness upon Demand and Liability for Costs of Collection. You shall at all times be liable for the payment upon demand of any debit balance or other obligations owing in any of Your Account(s) with Alpaca, and You shall be liable to Alpaca for any deficiency remaining in any such accounts in the event of the liquidation thereof, in whole or in part, by Alpaca or by You; and, You shall make payments of such obligations and indebtedness upon demand. The reasonable cost and expense of collection of the debit balance, recovery of securities, and any unpaid deficiency in Your Account(s) with Alpaca, including, but not limited to attorney’s fees, incurred and payable or paid by Alpaca shall be payable to Alpaca by You.

5. **Pledge of Securities.** All securities, commodities, and other property now or hereafter held, carried, or maintained by Alpaca in its possession in any of Your Account(s) may be pledged and re-pledged by Alpaca from time to time, without notice to You, either separately or in common with other such securities, commodities, and other property for any amount due in Your Account(s), or for any greater amount, and Alpaca may do so without retaining into its possession or control for delivery, a like amount of similar securities, commodities, or other property
6. **Margin Requirements, Credit Charges, and Credit Investigation.** You will at all times maintain such securities, commodities, and other property in Your Account(s) for margin purposes as Alpaca shall require from time to time via a margin call or other request, and the monthly debit balances or adjusted balances in Your Account(s) with Alpaca shall be charged, in accordance with Alpaca practice, with interest at a rate permitted by laws of the State of New York. It is understood that the interest charge made to Your Account at the close of a charge period will be added to the opening balance for the next charge period unless paid. You acknowledge receipt of the Disclosure Statement, which explains the conditions under which interest can be charged to Your Account, the annual rate of interest, how debit balances are determined, and the methods of computing interest. You further acknowledge receipt of the separate Margin Disclosure Statement, which provides some basic facts about purchasing securities on margin and alerts you to the risks involved with trading securities in a margin account. In regard to margin calls, whether for maintenance or any other margin call, in lieu of immediate liquidations, Alpaca, may permit You a period of time to satisfy a call. This time period shall not in any way waive or diminish Alpaca's right in its sole discretion, to shorten the time period in which You may satisfy the call, including one already outstanding, or to demand that a call be satisfied immediately. Nor does such practice waive or diminish the right of Alpaca to sell out positions to satisfy the call, which can be as high as the full indebtedness owed by You. Margin requirements may be established and changed by Alpaca in its sole discretion and judgment without notice to You. Alpaca may exchange credit information about You with others. Alpaca may request a credit report on You, and upon request, Alpaca will state the name and address of the consumer reporting agency that furnished it. If Alpaca extends, updates, or renews Your credit, Alpaca may request a new credit report without notifying You.
7. **Loan Consent.** By signing this Agreement, You acknowledge that securities not fully paid for by You may be loaned to Alpaca or loaned out to others at Alpaca's sole discretion and without prior notice to You.
8. **Shareholder Vote of Loaned Securities.** In the event Your securities have been loaned by Alpaca on the record date of a shareholder vote involving those securities, You agree that Your vote may be reduced to reflect the total amount of Your securities loaned by Alpaca.